

Proof of ownership is not available

Titled vehicles

If the seller has a title certificate that was transferred to the seller by the previous owner, and the title certificate displays the name of the previous owner, the seller must get a title certificate that displays the name of the seller. Use the Application for Title Only (PDF) [1] (MV-82TON) form. Follow the instructions carefully.

Do not use the MV-82TON form to

- apply for both a vehicle registration and a title certificate at the same time
- replace a lost title certificate

If the seller cannot get a title certificate that displays their name, they can contact the DMV [2] to get more information.

Non-titled vehicles

Replace a NY State transferable registration

If the NY State transferable registration is lost, the current owner can apply for a duplicate registration document at a DMV office. Use the Application for Registration or Title (PDF) [3] (MV-82) and the instructions for Registering/Titling a Vehicle in New York State (PDF) [4] (MV-82.1). The current owner

- can transfer the ownership with the duplicate registration, even if the registration is expired
- must also complete a bill of sale (see Get proof of ownership at purchase [5])

Use the Certification of NY State Registration for Transfer of Non-Titled Vehicle

If the NY State transferable registration is lost and the DMV cannot issue a duplicate, the current owner can apply for Certification of NY State Registration for Transfer of Non-Titled Vehicle (Form MV-353). The DMV must verify that the vehicle was registered to the current owner. The current owner must provide proof of identity (see proofs of identity [6]). There is a fee \$10 for form MV-353. The current owner can use form MV-353 and a bill of sale [7].

Use the Statement of Ownership (PDF) [8] (MV-51B)

If the DMV cannot issue a transferable registration or form MV-353 the registration applicant must show other evidence of ownership. For example, the applicant can show an old registration, an original Manufacturer's Certificate of Origin, or an original Manufacturer's Statement of Origin. If the proof is not available, the applicant can use the MV-51B for proof of ownership.

Use the Certification \[Affidavit\] of Sale or Transfer (PDF) \[9\] (MV-51) for 1972 or Older Vehicles or Any Other Non-Titled Vehicles

If the seller did not register the vehicle, the boat, the ATV or the snowmobile, they can give the buyer

- a completed MV-51
- the original proof of ownership
- a bill of sale that they received from the previous owner

If there are other previous owners, the seller must also give the buyer proofs of all previous transfers of ownership. The seller must also give the buyer a bill of sale.

Seller did not provide proof of ownership

Before you purchase a vehicle, boat, or snowmobile that is non-titled, make sure that you will receive the acceptable proofs of ownership. If you cannot get any of these proofs, you must

- contact the person that sold you the vehicle, boat or snowmobile to you and get
 - a bill of sale, and
 - a registration receipt or form MV-353 transferred to you

or

- write to the owner and request that they transfer the acceptable proof of ownership to you and mail the proof to you (we recommend you use certified mail to request a return receipt)

If you do not receive proof of ownership and the US Postal Service returns your certified letter, bring all of these items to a DMV office

- the returned certified letter in its envelope, not opened
- a pencil tracing, a photo or a police statement that shows the vehicle identification number
- a notarized affidavit that explains how you got the vehicle and how you tried to get acceptable proof of ownership
- other documents that are evidence of ownership - for example, a bill of sale or registration documents of the previous owners, or your cancelled check for payment
- a completed Statement of Ownership (PDF) \[8\] (MV-51B) - if you have had the vehicle, boat or snowmobile for less than one year and it was never registered by the previous owner, the previous owner must complete form MV-51B

Important

If your proof of ownership for a non-titled vehicle, boat, or snowmobile is not a NY State transferable registration, the local DMV office will issue a non-transferable registration. You can use the vehicle, boat or snowmobile with a non-transferable registration, but you cannot transfer

your ownership to another person.

The DMV Title Services Bureau will examine your proofs and will mail to you either a transferable registration, or a letter that explains why the DMV cannot issue a transferable registration.